

IN THE DISTRICT COURT OF COMANCHE COUNTY STATE OF OKLAHOMA

DEBRA ELAINE YOUNG DUNHAM,

Plaintiff,

V.

EXPERIAN d/b/a CONSUMERINFO.COM

(“EXPERIAN”); TRANSUNION OF AMERICA

(“TRANSUNION”); SOVEREIGN BANK OF OKLAHOMA

(“SOVEREIGN”), COMANCHE COUNTY COURTHOUSE

COURT CLERK CARRIE TUBBS (“COURT CLERK”);

THE CITY OF LAWTON (“City of Lawton”);

DONNALYNN BLAZEK-SCHERLER CITY CLERK (“City

of Lawton City Clerk”); PENNYMAC LOAN SERVICES,

LLC (“PennyMac”);

DOES 1-25, inclusive,

Defendants.

Case No.

PETITION FOR DECLARATORY RELIEF, FRAUD, IDENTITY THEFT-RELATED DAMAGES, QUIET TITLE, AND INJUNCTIVE RELIEF

COMES NOW the Plaintiff, Debra Elaine Young Dunham ("Plaintiff"), and for her causes of action against Defendants PennyMac Loan Services, LLC ("PennyMac"), Experian d/b/a ConsumerInfo.COM ("Experian"), Transunion Of America ("Transunion"); Sovereign Bank of Oklahoma ("Sovereign"), Comanche County Courthouse Court Clerk Carrie Tubbs ("Comanche County Court Clerk"), the City Of Lawton City Clerk Donnalynn Blazek-Scherler ("City of Lawton City Clerk"), alleges as follows:

I. PARTIES, JURISDICTION, AND VENUE

1. Plaintiff is a resident of Comanche County, Oklahoma.
2. Defendant PennyMac Loan Services, LLC is a mortgage servicing entity conducting business in the State of Oklahoma.
3. Venue is proper in Comanche County pursuant to Oklahoma law because the property, transactions, injuries, and records at issue occurred in whole or in part within Comanche County, Oklahoma.

II. GENERAL ALLEGATIONS

1. Plaintiff incorporates all allegations contained within her sworn Affidavit of Identity Theft dated May 16, 2026.
2. Plaintiff alleges that one or more mortgage-related accounts, inquiries, county records, loan instruments, or servicing records were created, modified, transferred, reopened, or

reported using Plaintiff's real name and true identity, along with personal information without lawful authorization as committed to repository and available for discovery, if so permitted by the court, should be considered as entered, set aside, turned over, and is available online at <https://github.com/city-of-lawton>.

3. Plaintiff alleges that mortgage-related inquiries associated with PennyMac and/or Sovereign Bank appeared contemporaneously and simultaneously through Defendants using related unauthorized hard and soft credit inquiries, despite Plaintiff's profile being locked and frozen or further restricted by fraud statements.
4. Plaintiff further alleges that the mortgage account reflected inconsistent balances, loan identifiers, Social Security numbers, names, addresses, payment histories, origination, and transfers and assignments.
5. Plaintiff alleges that records associated with the mortgage transaction contain discrepancies between:
 - a. the original closing documentation;
 - b. the subsequently reported loan balances;
 - c. the reported payment histories;
 - d. the servicing records;
 - e. and the identifying information attributed to Plaintiff.
6. Plaintiff alleges that the inquiries and mortgage account activity coincide with real name true-identity fraud and theft indicators reflected in consumer reporting records, including mismatched names, Social Security numbers, addresses, and duplicate or recreated account histories, and incorrect distributed personal identifying information attributes
7. Plaintiff alleges, upon information and belief, that the mortgage account associated with PennyMac was opened, recreated, modified, or reported simultaneously with other unauthorized inquiry activity connected to Sovereign Bank through Experian and Transunion.
8. Plaintiff alleges that the inquiry chronology reflects overlapping inquiry events tied to:
 - a. "SOVEREIGN BANK via XACTUS LLC" dated May 13, 2025, April 4, 2025, and November 7, 2024;
 - b. "CREDCO/PENNYMAC LOAN SVC" dated December 5, 2025;
 - c. and additional inquiry activity associated with unauthorized lending and credit distribution and solicitation attempts.
9. Plaintiff alleges that certain inquiries and accounts were later removed, modified, or recreated in a manner inconsistent with lawful mortgage origination, servicing practices, and credit reporting.
10. Plaintiff alleges that she did not knowingly authorize the use of alternate Social Security numbers, alternate names, addresses, or any personal identifying information including reconstructed closing disclosures, and FHA mortgage documents required by federal law associated with the subject mortgage account.
11. As grounds for this lawsuit, Plaintiff asserts the existence of conflicting evidence which is not alleged or hearsay. Specifically, in written correspondence dated May 15, 2026, Defendant PennyMac expressly stated: "Our records confirm that Pennymac has no record of initiating either hard or soft inquiries on your credit profile. Allow me to confirm, Pennymac first began reporting to the credit bureaus with our credit transmission on July 7, 2025. Since that time, your account has been reported consistently as current each

month." This direct admission conflicts with the unauthorized credit inquiries and reporting discrepancies alleged herein.

III. FIRST CAUSE OF ACTION (Fraud and Misrepresentation)

1. Plaintiff re-affirms and incorporates all prior paragraphs.
2. Defendants, whether entities or persons acting in concert with them, knowingly or recklessly caused false representations to appear within mortgage servicing records, credit reporting systems, loan disclosures, origination documentation, and Comanche County court records.
3. Plaintiff relied upon the accuracy and legality of mortgage and credit reporting systems and suffered damages when materially false AND unauthorized information was reported or maintained, distributed, and disseminated dangerously
4. Plaintiff has suffered damages including but not limited to:
 - a. damage to credit reputation;
 - b. emotional distress;
 - c. inability to obtain lawful credit;
 - d. loss of wages and work;
 - e. clouded title interests;
 - f. litigation costs;
 - g. continuing reputational and financial harm.
 - f.loss of invested equitable interests and ability to invest into others

IV. SECOND CAUSE OF ACTION (Declaratory Judgment)

1. An actual controversy exists concerning the validity, enforceability, and lawful origination of the mortgage instruments, related servicing records, and the County of Comanche Court records.
2. Plaintiff requests a declaration determining:
 - a. whether the mortgage instruments were lawfully originated or transferred;
 - b. whether the loan was created or transferred using unauthorized real name true-identity personal identifying information;
 - c. whether the associated inquiries were lawfully authorized;
 - d. and whether the loan records are enforceable.

V. THIRD CAUSE OF ACTION (Quiet Title / Cloud on Title)

1. Plaintiff alleges that the challenged mortgage records and associated filings constitute a cloud upon title in the County of Comanche Court records.
2. Plaintiff requests that the Court determine the validity and enforceability of any claimed liens, interests and insurance payments associated with the disputed mortgage account.

VI. FOURTH CAUSE OF ACTION (Injunctive Relief)

1. Plaintiff seeks temporary and permanent injunctive relief preventing:

- a. further reporting of misrepresented and distributed information;
- b. further payment and collection activity;
- c. transfer or assignment of the disputed mortgage;
- d. foreclosure activity;
- e. and continued dissemination of real name-true identity information.

VII. SUPPORTING FACTUAL BASIS

1. Plaintiff's affidavit identifies credit inquiry records, mortgage-related entries, and records associated with real name-true identity misuse and simultaneous activity in the County of Comanche Court records.
2. Plaintiff alleges that the chronology of hard and soft inquiries supports an inference that the disputed mortgage account was created and recreated contemporaneously with unauthorized real name-true identity theft and fraud related activity.
3. Plaintiff further alleges that inquiry timelines, mismatched identifiers, altered balances, reconstructed disclosures and missing required federal FHA documentation constitute concrete evidence of unlawful and unauthorized account origination.

VIII. RELEVANT AUTHORITIES

1. Plaintiff references real name-true identity theft and fraud-related legal authorities, including principles recognized in:
 - a. Fair Credit Reporting Act claims concerning inaccurate reporting;
 - b. Oklahoma fraud and deceptive practice doctrines;
 - c. quiet title jurisprudence;
 - d. identity theft statutes;
 - e. and cases recognizing liability arising from misuse of personal identifying information, and real name-true identity dissemination;

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

1. Declaratory relief concerning the validity of the disputed mortgage accounts and related instruments;
2. Temporary and permanent injunctive relief;
3. Actual damages according to proof;
4. Statutory damages where permitted by law;
5. Punitive damages if supported by evidence;
6. Costs, real name-identity restoration and attorney fees where authorized, interest; and
7. Such other and further relief as the Court deems just and proper.

Respectfully submitted, **DEBRA ELAINE YOUNG DUNHAM** Plaintiff, Pro Se
c/c: DD